

ENTITLED: “AN ORDINANCE PURSUANT TO SECTION 2.2.1 ZONING MAP AMENDMENTS, SECTION 2.2.2 PLANNED DEVELOPMENT PLAN, SECTION 5.1.2 ZONING DISTRICTS ESTABLISHED, SECTION 5.1.3 OFFICIAL ZONING MAP, AND SECTION 5.6.2. PUD – PLANNED UNIT DEVELOPMENT DISTRICT, OF THE UNIFIED DEVELOPMENT CODE, CHANGING THE ZONING CLASSIFICATION FROM LARAMIE COUNTY SWEETGRASS PLANNED UNIT DEVELOPMENT (PUD) TO CITY OF CHEYENNE SWEETGRASS PUD FOR 2,349.54 ACRES OF LAND KNOWN AS THE SWEETGRASS LAND AREA, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED SOUTH OF COLLEGE DRIVE AND EAST OF AVENUE C).”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owners of the property described herein have submitted a Sweetgrass Planned Unit Development (“PUD”) Preliminary Plan pursuant to Section 5.6.2.f of the Cheyenne Unified Development Code (“UDC”) which was conditionally-approved by the Governing Body on October 10, 2016.

Section 2. That on May 7, 2018, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the Applicant’s proposed Sweetgrass PUD Final Plan that is the subject of this ordinance, found that it met the three conditions of approval of the PUD Preliminary Plan, and recommended conditional-approval of said PUD Final Plan, rezoning the property described herein to Sweetgrass Planned Unit Development-PUD.

Section 3. That the Governing Body of the City of Cheyenne finds that the PUD Final Plan that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendments, Section 2.2.2, Planned Development Plan, Section 5.1.2, Zoning Districts Established, Section 5.1.3, Official Zoning Map, and Section 5.6.2 PUD – Planned Unit Development District, of the UDC, the application is hereby approved, and the zoning classification of the real property described in Exhibit A to this ordinance is hereby changed to Sweetgrass Planned Unit Development (PUD).

Section 5. That, in accordance with Section 5.6.2, the land use, design and development standards and guidelines described in Exhibit B to this ordinance shall govern this PUD zoning classification.

Section 6. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 8 below.

Section 7. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 8. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

MARIAN J. ORR, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

publish date: _____

EXHIBIT A: Sweetgrass PUD Legal Description

Legal Description:

The following parcels of land situated in Township 13 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, described as follows:

The Southeast Quarter of the Southeast Quarter (SE $\frac{1}{4}$ SE $\frac{1}{4}$) of Section 10; the South Half of the South Half of the West Half (S $\frac{1}{2}$ S $\frac{1}{2}$ W $\frac{1}{2}$) of Section 11; the West Half (W $\frac{1}{2}$) of Section 14; all of Section 15; all of Section 16 lying south of College Drive right-of-way line and EXCEPT that parcel recorded June 26, 1991 by Warranty Deed filed in Book 1304, Page 1805, Laramie County, Wyoming, records described as follows:

Beginning at a point on the West line of said Section 16, from which the Northwest corner thereof bears N.0°50'32"E., a distance of 1320.58 feet; thence S.89°42'54"E., a distance of 160.00 feet; thence S.0°50'32"W., a distance of 160.00 feet; thence N.89°42'54"W., a distance of 160.00 feet to a point on the West line of said Section 16; thence N.0°50'32"E., along said West line, a distance of 160.00 feet to the point of beginning. Exception containing 0.5877 acres more or less; and all of Section 21, Cheyenne, Wyoming.

EXHIBIT B: Sweetgrass Final Planned Unit Development Standards and Guidelines
Printed April 23, 2018 and Adopted _____.